

The Companies Act, 2013
(The Companies Act, 2013 | Bare Act)
Chapter-I Preliminary

[*Click here for Companies Act Rules*](#)

Section-1 Short title, extent, commencement and application

Section-2 Definitions

Chapter-II Incorporation of Company and Matters Incidental Thereto

Section-3 Formation of company
--

Section-3A Members severally liable in certain cases
--

Section-4 Memorandum

Section-5 Articles

Section-6 Act to override memorandum, articles, etc.
--

Section-7 Incorporation of company
--

Section-8 Formation of companies with charitable objects, etc.
--

Section-9 Effect of registration
--

Section-10 Effect of memorandum and articles
--

Section-10A Commencement of business, etc.
--

Section-11 Commencement of business, etc
--

Section-12 Registered office of company

Section-13 Alteration of memorandum

Section-14 Alteration of articles

Section-15 Alteration of memorandum or articles to be noted in every copy

Section-16 Rectification of name of company

Section-17 Copies of memorandum, articles, etc., to be given to members

Section-18 Conversion of companies already registered

Section-19 Subsidiary company not to hold shares in its holding company

Section-20 Service of documents

Section-21 Authentication of documents, proceedings and contracts

Section-22 Execution of bills of exchange, etc.

Chapter-III Prospectus and allotment of Securities

Part I- Public Offer

Section-23 Public offer and private placement
Section-24 Power of Securities and Exchange Board to regulate issue and transfer of securities, etc
Section-25 Document containing offer of securities for sale to be deemed prospectus
Section-26 Matters to be stated in prospectus
Section-27 Variation in terms of contract or objects in prospectus
Section-28 Offer of sale of shares by certain members of company
Section-29 Public offer of securities to be in dematerialised form
Section-30 Advertisement of prospectus
Section-31 Shelf prospectus
Section-32 Red herring prospectus
Section-33 Issue of application forms for securities
Section-34 Criminal liability for mis-statements in prospectus
Section-35 Civil liability for mis-statements in prospectus
Section-36 Punishment for fraudulently inducing persons to invest money
Section-37 Action by affected persons
Section-38 Punishment for personation for acquisition, etc., of securities
Section-39 Allotment of securities by company
Section-40 Securities to be dealt with in stock exchanges
Section-41 Global depository receipt

Chapter-III Prospectus and allotment of Securities

Part II- Private Placement

Section-42 Issue of shares on private placement basis	
---	--

Chapter-IV Share Capital and Debentures

Section-43 Kinds of share capital
Section-44 Nature of shares or debentures
Section-45 Numbering of shares
Section-46 Certificate of shares
Section-47 Voting rights
Section-48 Variation of shareholders' rights

Section-49 Calls on shares of same class to be made on uniform basis
Section-50 Company to accept unpaid share capital, although not called up
Section-51 Payment of dividend in proportion to amount paid-up
Section-52 Application of premiums received on issue of shares
Section-53 Prohibition on issue of shares at discount
Section-54 Issue of sweat equity shares
Section-55 Issue and redemption of preference shares
Section-56 Transfer and transmission of securities
Section-57 Punishment for personation of shareholder
Section-58 Refusal of registration and appeal against refusal
Section-59 Rectification of register of members
Section-60 Publication of authorised, subscribed and paid-up capital
Section-61 Power of limited company to alter its share capital
Section-62 Further issue of share capital
Section-63 Issue of bonus shares
Section-64 Notice to be given to Registrar for alteration of share capital
Section-65 Unlimited company to provide for reserve share capital on conversion into limited company
Section-66 Reduction of share capital
Section-67 Restrictions on purchase by company or giving of loans by it for purchase of its shares
Section-68 Power of company to purchase its own securities
Section-69 Transfer of certain sums to capital redemption reserve account
Section-70 Prohibition for buy-back in certain circumstances
Section-71 Debentures
Section-72 Power to nominate

Chapter-V Acceptance of Deposits by Companies

Section-73 Prohibition on acceptance of deposits from public
Section-74 Repayment of deposits, etc., accepted before commencement of this Act
Section-75 Damages for fraud
Section-76 Acceptance of deposits from public by certain companies
Section-76A Punishment for contravention of Section 73 or Section 76

Chapter-VI Registration of Charges

Section-77 Duty to register charges, etc
Section-78 Application for registration of charge
Section-79 Section 77 to apply in certain matters
Section-80 Date of notice of charge
Section-81 Register of charges to be kept by Registrar
Section-82 Company to report satisfaction of charge
Section-83 Power of Registrar to make entries of satisfaction and release in absence of intimation from company
Section-84 Intimation of appointment of receiver or manager
Section-85 Company's register of charges
Section-86 Punishment for contravention
Section-87 Rectification by Central Government in Register of charges

Chapter-VII Management and Administration

Section-88 Register of members, etc
Section-89 Declaration in respect of beneficial interest in any share
Section-90 Register of significant beneficial owners in a company
Section-91 Power to close register of members or debenture-holders or other security holders
Section-92 Annual return
Section-93 Return to be filed with Registrar in case promoters' stake changes
Section-94 Place of keeping and inspection of registers, returns, etc
Section-95 Registers, etc., to be evidence
Section-96 Annual general meeting
Section-97 Power of Tribunal to call annual general meeting
Section-98 Power of Tribunal to call meetings of members, etc
Section-99 Punishment for default in complying with provisions of sections 96 to 98
Section-100 Calling of extraordinary general meeting
Section-101 Notice of meeting
Section-102 Statement to be annexed to notice
Section-103 Quorum for meetings
Section-104 Chairman of meetings
Section-105 Proxies

[Section-106 Restriction on voting rights](#)
[Section-107 Voting by show of hands](#)
[Section-108 Voting through electronic means](#)
[Section-109 Demand for poll](#)
[Section-110 Postal ballot](#)
[Section-111 Circulation of members' resolution](#)
[Section-112 Representation of President and Governors in meetings](#)
[Section-113 Representation of corporations at meeting of companies and of creditors](#)
[Section-114 Ordinary and special resolutions](#)
[Section-115 Resolutions requiring special notice](#)
[Section-116 Resolutions passed at adjourned meeting](#)
[Section-117 Resolutions and agreements to be filed](#)
[Section-118 Minutes of proceedings of general meeting, meeting of Board of Directors and other meeting and resolutions passed by postal ballot](#)
[Section-119 Inspection of minute-books of general meeting](#)
[Section-120 Maintenance and inspection of documents in electronic form](#)
[Section-121 Report on annual general meeting](#)
[Section-122 Applicability of this Chapter to One Person Company](#)

Chapter-VIII Declaration and Payment of Dividend

[Section-123 Declaration of dividend](#)
[Section-124 Unpaid Dividend Account](#)
[Section-125 Investor Education and Protection Fund](#)
[Section-126 Right to dividend, rights shares and bonus shares to be held in abeyance pending registration of transfer of shares](#)
[Section-127 Punishment for failure to distribute dividends](#)

Chapter-IX Accounts of Companies

[Section-128 Books of account, etc., to be kept by company](#)
[Section-129 Financial statement](#)
[Section-129A Periodical financial results](#)
[Section-130 Re-opening of accounts on court's or Tribunal's orders](#)
[Section-131 Voluntary revision of financial statements or Board's report](#)
[Section-132 Constitution of National Financial Reporting Authority](#)

Section-133 Central Government to prescribe accounting standards
--

Section-134 Financial statement, Board's report, etc
--

Section-135 Corporate Social Responsibility

Section-136 Right of member to copies of audited financial statement
--

Section-137 Copy of financial statement to be filed with Registrar
--

Section-138 Internal audit
--

Chapter-X Audit and Auditors

Section-139 Appointment of auditors

Section-140 Removal, resignation of auditor and giving of special notice
--

Section-141 Eligibility, qualifications and disqualifications of auditors

Section-142 Remuneration of auditors
--

Section-143 Powers and duties of auditors and auditing standards
--

Section-144 Auditor not to render certain services
--

Section-145 Auditor to sign audit reports, etc
--

Section-146 Auditors to attend general meeting
--

Section-147 Punishment for contravention
--

Section-148 Central Government to specify audit of items of cost in respect of certain companies
--

Chapter-XI Appointment and Qualifications of Directors

Section-149 Company to have Board of Directors
--

Section-150 Manner of selection of independent directors and maintenance of databank of independent directors

Section-151 Appointment of director elected by small shareholders

Section-152 Appointment of directors
--

Section-153 Application for allotment of Director Identification Number

Section-154 Allotment of Director Identification Number

Section-155 Prohibition to obtain more than one Director Identification Number
--

Section-156 Director to intimate Director Identification Number

Section-157 Company to inform Director Identification Number to Registrar

Section-158 Obligation to indicate Director Identification Number

Section-159 Penalty for default of certain provisions

Section-160 Right of persons other than retiring directors to stand for directorship
--

[Section-161 Appointment of additional director, alternate director and nominee director](#)

[Section-162 Appointment of directors to be voted individually](#)

[Section-163 Option to adopt principle of proportional representation for appointment of directors](#)

[Section-164 Disqualifications for appointment of director](#)

[Section-165 Number of directorships](#)

[Section-166 Duties of directors](#)

[Section-167 Vacation of office of director](#)

[Section-168 Resignation of director](#)

[Section-169 Removal of directors](#)

[Section-170 Register of directors and key managerial personnel and their shareholding](#)

[Section-171 Members' right to inspect](#)

[Section-172 Penalty](#)

Chapter-XII Meetings of Board and Its Powers

[Section-173 Meetings of Board](#)

[Section-174 Quorum for meetings of Board](#)

[Section-175 Passing of resolution by circulation](#)

[Section-176 Defects in appointment of directors not to invalidate actions taken](#)

[Section-177 Audit Committee](#)

[Section-178 Nomination and Remuneration Committee and Stakeholders Relationship Committee](#)

[Section-179 Powers of Board](#)

[Section-180 Restrictions on powers of Board](#)

[Section-181 Company to contribute to *bona fide* and charitable funds, etc](#)

[Section-182 Prohibitions and restrictions regarding political contributions](#)

[Section-183 Power of Board and other persons to make contributions to national defence fund, etc.](#)

[Section-184 Disclosure of interest by director](#)

[Section-185 Loan to directors, etc.](#)

[Section-186 Loan and investment by company](#)

[Section-187 Investments of company to be held in its own name](#)

[Section-188 Related party transactions](#)

[Section-189 Register of contracts or arrangements in which directors are interested](#)

[Section-190 Contract of employment with managing or whole-time directors](#)

[Section-191 Payment to director for loss of office, etc., in connection with transfer of undertaking, property or shares](#)

[Section-192 Restriction on non-cash transactions involving directors](#)

[Section-193 Contract by One Person Company](#)

[Section-194 Prohibition on forward dealings in securities of company by director or key managerial personnel](#)

[Section-195 Prohibition on insider trading of securities](#)

Chapter-XIII Appointment and Remuneration of Managerial Personnel

[Section-196 Appointment of managing director, whole-time director or manager](#)

[Section-197 Overall maximum managerial remuneration and managerial remuneration in case of absence or inadequacy of profits](#)

[Section-198 Calculation of profits](#)

[Section-199 Recovery of remuneration in certain cases](#)

[Section-200 Central Government or company to fix limit with regard to remuneration](#)

[Section-201 Forms of, and procedure in relation to, certain applications](#)

[Section-202 Compensation for loss of office of managing or whole-time director or manager](#)

[Section-203 Appointment of key managerial personnel](#)

[Section-204 Secretarial audit for bigger companies](#)

[Section-205 Functions of company secretary](#)

Chapter-XIV Inspection, Inquiry and Investigation

[Section-206 Power to call for information, inspect books and conduct inquiries](#)

[Section-207 Conduct of inspection and inquiry](#)

[Section-208 Report on inspection made](#)

[Section-209 Search and seizure](#)

[Section-210 Investigation into affairs of company](#)

[Section-211 Establishment of Serious Fraud Investigation Office](#)

[Section-212 Investigation into affairs of Company by Serious Fraud Investigation Office](#)

[Section-213 Investigation into company's affairs in other cases](#)

Section-214 Security for payment of costs and expenses of investigation
Section-215 Firm, body corporate or association not to be appointed as inspector
Section-216 Investigation of ownership of company
Section-217 Procedure, powers, etc., of inspectors
Section-218 Protection of employees during investigation
Section-219 Power of inspector to conduct investigation into affairs of related companies, etc
Section-220 Seizure of documents by inspector
Section-221 Freezing of assets of company on inquiry and investigation
Section-222 Imposition of restrictions upon securities
Section-223 Inspector's report
Section-224 Actions to be taken in pursuance of inspector's report
Section-225 Expenses of investigation
Section-226 Voluntary winding up of company, etc., not to stop investigation proceedings
Section-227 Legal advisers and bankers not to disclose certain information
Section-228 Investigation, etc., of foreign companies
Section-229 Penalty for furnishing false statement, mutilation, destruction of documents

Chapter-XV Compromises, Arrangements and Amalgamations

Section-230 Power to compromise or make arrangements with creditors and members
Section-231 Power of Tribunal to enforce compromise or arrangement
Section-232 Merger and amalgamation of companies
Section-233 Merger or amalgamation of certain companies
Section-234 Merger or amalgamation of company with foreign company
Section-235 Power to acquire shares of shareholders dissenting from scheme or contract approved by majority
Section-236 Purchase of minority shareholding
Section-237 Power of Central Government to provide for amalgamation of companies in public interest
Section-238 Registration of offer of schemes involving transfer of shares
Section-239 Preservation of books and papers of amalgamated companies
Section-240 Liability of officers in respect of offences committed prior to merger, amalgamation, etc.

Chapter-XVI Prevention of Oppression and Mismanagement

Section-241 Application to Tribunal for relief in cases of oppression, etc.
Section-242 Powers of Tribunal
Section-243 Consequence of termination or modification of certain agreements
Section-244 Right to apply under Section 241
Section-245 Class action
Section-246 Application of certain provisions to proceedings under Section 241 or Section 245

Chapter-XVII Registered Valuers

Section-247 Valuation by registered valuers

Chapter-XVIII Removal of Name of Companies from the Register of Companies

Section-248 Power of Registrar to remove name of company from register of companies
Section-249 Restrictions on making application under Section 248 in certain situations
Section-250 Effect of company notified as dissolved
Section-251 Fraudulent application for removal of name
Section-252 Appeal to Tribunal

Chapter-XIX Revival and Rehabilitation of Sick Companies

Section-253 Determination of sickness
Section-254 Application for revival and rehabilitation
Section-255 Exclusion of certain time in computing period of limitation
Section-256 Appointment of interim administrator
Section-257 Committee of creditors
Section-258 Order of Tribunal
Section-259 Appointment of administrator
Section-260 Powers and duties of company administrator
Section-261 Scheme of revival and rehabilitation
Section-262 Sanction of scheme
Section-263 Scheme to be binding
Section-264 Implementation of scheme
Section-265 Winding up of company on report of company administrator

Section-266 Power of Tribunal to assess damages against delinquent directors, etc

Section-267 Punishment for certain offences

Section-268 Bar of jurisdiction

Section-269 Rehabilitation and Insolvency Fund
--

Chapter-XX Winding Up

Section-270 Winding up by Tribunal
--

Chapter– XX Winding Up

Part I- Winding up by the Tribunal

Section-271 Circumstances in which company may be wound up by Tribunal
--

Section-272 Petition for winding up

Section-273 Powers of Tribunal
--

Section-274 Directions for filing statement of affairs
--

Section-275 Company Liquidators and their appointments
--

Section-276 Removal and replacement of liquidator

Section-277 Intimation to Company Liquidator, provisional liquidator and Registrar
--

Section-278 Effect of winding up order
--

Section-279 Stay of suits, etc., on winding up order
--

Section-280 Jurisdiction of Tribunal
--

Section-281 Submission of report by Company Liquidator
--

Section-282 Directions of Tribunal on report of Company Liquidator
--

Section-283 Custody of company's properties

Section-284 Promoters, directors, etc., to cooperate with Company Liquidator
--

Section-285 Settlement of list of contributories and application of assets
--

Section-286 Obligations of directors and managers

Section-287 Advisory committee
--

Section-288 Submission of periodical reports to Tribunal
--

Section-289 Power of Tribunal on application for stay of winding up

Section-290 Powers and duties of Company Liquidator

Section-291 Provision for professional assistance to Company Liquidator

Section-292 Exercise and control of Company Liquidator's powers

Section-293 Books to be kept by Company Liquidator
--

Section-294 Audit of Company Liquidator's accounts
Section-295 Payment of debts by contributory and extent of set-off
Section-296 Power of Tribunal to make calls
Section-297 Adjustment of rights of contributories
Section-298 Power to order costs
Section-299 Power to summon persons suspected of having property of company, etc
Section-300 Power to order examination of promoters, directors, etc
Section-301 Arrest of person trying to leave India or abscond
Section-302 Dissolution of company by Tribunal
Section-303 Appeals from orders made before commencement of Act

Chapter– XX Winding Up

Part II- Voluntary Winding Up

Section-304 Circumstances in which company may be wound up voluntarily
Section-305 Declaration of solvency in case of proposal to wind up voluntarily
Section-306 Meeting of creditors
Section-307 Publication of resolution to wind up voluntarily
Section-308 Commencement of voluntary winding up
Section-309 Effect of voluntary winding up
Section-310 Appointment of Company
Section-311 Power to remove and fill vacancy of Company Liquidator
Section-312 Notice of appointment of Company Liquidator to be given to Registrar
Section-313 Cesser of Board's powers on appointment of Company Liquidator
Section-314 Powers and duties of Company Liquidator in voluntary winding up
Section-315 Appointment of committees
Section-316 Company Liquidator to submit report on progress of winding up
Section-317 Report of Company Liquidator to Tribunal for examination of persons
Section-318 Final meeting and dissolution of company
Section-319 Power of Company Liquidator to accept shares, etc., as consideration for sale of property of company
Section-320 Distribution of property of company
Section-321 Arrangement when binding on company and creditors

[Section-322 Power to apply to Tribunal to have questions determined, etc](#)

[Section-323 Costs of voluntary winding up](#)

Chapter– XX Winding Up

Part III- Provision applicable to every mode of winding up

[Section-324 Debts of all descriptions to be admitted to proof](#)

[Section-325 Application of insolvency rules in winding up of insolvent companies](#)

[Section-326 Overriding preferential payments](#)

[Section-327 Preferential payments](#)

[Section-328 Fraudulent preference](#)

[Section-329 Transfers not in good faith to be void](#)

[Section-330 Certain transfers to be void](#)

[Section-331 Liabilities and rights of certain persons fraudulently preferred](#)

[Section-332 Effect of floating charge](#)

[Section-333 Disclaimer of onerous property](#)

[Section-334 Transfers, etc., after commencement of winding up to be void](#)

[Section-335 Certain attachments, executions, etc., in winding up by Tribunal to be void](#)

[Section-336 Offences by officers of companies in liquidation](#)

[Section-337 Penalty for frauds by officers](#)

[Section-338 Liability where proper accounts not kept](#)

[Section-339 Liability for fraudulent conduct of business](#)

[Section-340 Power of Tribunal to assess damages against delinquent directors, etc](#)

[Section-341 Liability under sections 339 and 340 to extend to partners or directors in firms or companies](#)

[Section-342 Prosecution of delinquent officers and members of company](#)

[Section-343 Company Liquidator to exercise certain powers subject to sanction](#)

[Section-344 Statement that company is in liquidation](#)

[Section-345 Books and papers of company to be evidence](#)

[Section-346 Inspection of books and papers by creditors and contributories](#)

[Section-347 Disposal of books and papers of company](#)

[Section-348 Information as to pending liquidations](#)

[Section-349 Official Liquidator to make payments into public account of India](#)

Section-350 Company Liquidator to deposit monies into scheduled bank
Section-351 Liquidator not to deposit monies into private banking account
Section-352 Company Liquidation Dividend and Undistributed Assets Account
Section-353 Liquidator to make returns, etc
Section-354 Meetings to ascertain wishes of creditors or contributories
Section-355 Court, tribunal or person, etc., before whom affidavit may be sworn
Section-356 Powers of Tribunal to declare dissolution of company void
Section-357 Commencement of winding up by Tribunal
Section-358 Exclusion of certain time in computing period of limitation

Chapter– XX Winding Up

Part IV- Official Liquidators

Section-359 Appointment of Official Liquidator
Section-360 Powers and functions of Official Liquidator
Section-361 Summary procedure for liquidation
Section-362 Sale of assets and recovery of debts due to company
Section-363 Settlement of claims of creditors by Official Liquidator
Section-364 Appeal by creditor
Section-365 Order of dissolution of company

Chapter– XXI

Part I- Companies Authorised to Register under this Act

Section-366 Companies capable of being registered
Section-367 Certificate of registration of existing companies
Section-368 Vesting of property on registration
Section-369 Saving of existing liabilities
Section-370 Continuation of pending legal proceedings
Section-371 Effect of registration under this Part
Section-372 Power of Court to stay or restrain proceedings
Section-373 Suits stayed on winding up order
Section-374 Obligations of companies registering under this Part

Chapter– XXI

Part II- Winding Up of Unregistered Companies

[Section-375 Winding up of unregistered companies](#)

[Section-376 Power to wind up foreign companies, although dissolved](#)

[Section-377 Provisions of Chapter cumulative](#)

[Section-378 Saving and construction of enactments conferring power to wind up partnership firm, association or company, etc., in certain cases](#)

Chapter– XXIA Producer Companies

Part- I Preliminary

[Section-378A Definitions](#)

Chapter– XXIA Producer Companies

Part- II Incorporation of Producer Companies and other Matters

[Section-378B Objects of Producer Company](#)

[Section-378C Formation of Producer Company and its registration](#)

[Section-378D Membership and voting rights of Members of Producer Company](#)

[Section-378E Benefits to Members](#)

[Section-378F Memorandum of Producer Company](#)

[Section-378G Articles of association](#)

[Section-378H Amendment of memorandum](#)

[Section-378I Amendment of articles](#)

[Section-378J Option to inter-State co-operative societies to become Producer Companies](#)

[Section-378K Effect of incorporation of Producer Company](#)

[Section-378L Vesting of undertaking in Producer Company](#)

[Section-378M Concession, etc., to be deemed to have been granted to Producer Company](#)

[Section-378N Provisions in respect of officers and other employees of inter-State co-operative society](#)

Chapter– XXIA Producer Companies

Part- III Management of Producer Company

Section-378-O Number of directors
Section-378P Appointment of directors
Section-378Q Vacation of office by directors
Section-378R Powers and functions of Board
Section-378S Matters to be transacted at general meeting
Section-378T Liability of directors
Section-378U Committee of directors
Section-378V Meetings of Board and quorum
Section-378W Chief Executive and his functions
Section-378X Secretary of Producer Company
Section-378Y Quorum
Section-378Z Voting rights

Chapter– XXIA Producer Companies

Part- IV General Meetings

Section-378ZA Annual general meetings

Chapter– XXIA Producer Companies

Part- V Share Capital and Members Rights

Section-378ZB Share capital
Section-378ZC Special user rights
Section-378ZD Transferability of shares and attendant rights

Chapter– XXIA Producer Companies

Part- VI Finance, Accounts and Audit

Section-378ZE Books of account
Section-378ZF Internal audit
Section-378ZG Duties of auditor under this Chapter

Section-378ZH Donation or subscription by Producer Company
--

Section-378Z-I General and other reserves

Section-378ZJ Issue of bonus shares

Chapter– XXIA Producer Companies

Part- VII Loans to Members and Investments

Section-378ZK Loan, etc., to Members
--

Section-378ZL Investment in other companies, formation of subsidiaries, etc

Chapter– XXIA Producer Companies

Part- VIII Penalties

Section-378ZM Penalty for contravention	
---	--

Chapter– XXIA Producer Companies

Part- IX Amalgamation, Merger or Division

Section-378ZN Amalgamation, merger or division, etc., to form new Producer Companies	
--	--

Chapter– XXIA Producer Companies

Part- X Resolution of Disputes

Section-378Z-O Disputes	
---	--

Chapter– XXIA Producer Companies

Part- XI Miscellaneous Provisions

Section-378ZP Strike off name of Producer Company

Section-378ZQ Provisions of this Chapter to override other laws

Section-378ZR Application of provisions relating to private companies

Chapter– XXIA Producer Companies

Part- XII Re-Conversion of Producer Company to Inter-State Co-Operative Society

Section-378ZS Re-conversion of Producer Company to inter-State co-operative society

Section-378ZT Power to modify Act in its application to Producer Companies
--

[Section-378ZU Power to make rule](#)

Chapter– XXII Companies Incorporated Outside India

[Section-379 Application of Act to foreign companies](#)

[Section-380 Documents, etc., to be delivered to Registrar by foreign companies](#)

[Section-381 Accounts of foreign company](#)

[Section-382 Display of name, etc., of foreign company](#)

[Section-383 Service on foreign company](#)

[Section-384 Debentures, annual return, registration of charges, books of account and their inspection](#)

[Section-385 Fee for registration of documents](#)

[Section-386 Interpretation](#)

[Section-387 Dating of prospectus and particulars to be contained therein](#)

[Section-388 Provisions as to expert's consent and allotment](#)

[Section-389 Registration of prospectus](#)

[Section-390 Offer of Indian Depository Receipts](#)

[Section-391 Application of sections 34 to 36 and Chapter XX](#)

[Section-392 Punishment for contravention](#)

[Section-393 Company's failure to comply with provisions of this Chapter not to affect validity of contracts, etc](#)

[Section-393A Exemptions under this Chapter](#)

Chapter– XXIII Government Companies

[Section-394 Annual reports on Government companies](#)

[Section-395 Annual reports where one or more State Governments are members of companies](#)

Chapter– XXIV Registration Offices and Fees

[Section-396 Registration offices](#)

[Section-397 Admissibility of certain documents as evidence](#)

[Section-398 Provisions relating to filing of applications, documents, inspection, etc., in electronic form](#)

[Section-399 Inspection, production and evidence of documents kept by Registrar](#)

[Section-400 Electronic form to be exclusive, alternative or in addition to physical form](#)

[Section-401 Provision of value added services through electronic form](#)

[Section-402 Application of provisions of Information Technology Act, 2000](#)

Section-403 Fee for filing, etc

Section-404 Fees, etc., to be credited into public account
--

Chapter– XXV Companies to Furnish Information or Statistics

Section-405 Power of Central Government to direct companies to furnish information or statistics	
--	--

Chapter– XXVI Nidhis

Section-406 Provision relating to Nidhis and its application, etc.
--

Chapter– XXVII National Company Law Tribunal and Appellate Tribunal

Section-407 Definitions of NCLT & NCLAT

Section-408 Constitution of National Company Law Tribunal

Section-409 Qualification of President and Members of Tribunal
--

Section-410 Constitution of Appellate Tribunal
--

Section-411 Qualifications of chairperson and Members of Appellate Tribunal

Section-412 Selection of Members of Tribunal and Appellate Tribunal

Section-413 Term of office of President, chairperson and other Members
--

Section-414 Salary, allowances and other terms and conditions of service of Members

Section-415 Acting President and Chairperson of Tribunal or Appellate Tribunal
--

Section-416 Resignation of Members
--

Section-417 Removal of Members
--

Section-417A Qualifications, terms and conditions of service of Chairperson and Member
--

Section-418 Staff of Tribunal and Appellate Tribunal
--

Section-418A Benches of Appellate Tribunal
--

Section-419 Benches of Tribunal

Section-420 Orders of Tribunal
--

Section-421 Appeal from orders of Tribunal
--

Section-422 Expeditious disposal by Tribunal and Appellate Tribunal

Section-423 Appeal to Supreme Court

Section-424 Procedure before Tribunal and Appellate Tribunal
--

Section-425 Power to punish for contempt
--

Section-426 Delegation of powers
--

Section-427 President, Members, officers, etc., to be public servants
Section-428 Protection of action taken in good faith
Section-429 Power to seek assistance of Chief Metropolitan Magistrate, etc
Section-430 Civil court not to have jurisdiction
Section-431 Vacancy in Tribunal or Appellate Tribunal not to invalidate acts or proceedings
Section-432 Right to legal representation
Section-433 Limitation
Section-434 Transfer of certain pending proceedings

Chapter– XXVIII Special Courts

Section-435 Establishment of Special Courts
Section-436 Offences triable by Special Courts
Section-437 Appeal and revision
Section-438 Application of Code to proceedings before Special Court
Section-439 Offences to be non-cognizable
Section-440 Transitional provisions
Section-441 Compounding of certain offences
Section-442 Mediation and Conciliation Panel
Section-443 Power of Central Government to appoint company prosecutors
Section-444 Appeal against acquittal
Section-445 Compensation for accusation without reasonable cause
Section-446 Application of fines
Section-446A Factors for determining level of punishment
Section-446B Lesser penalties for certain companies

Chapter– XXIX Miscellaneous

Section-447 Punishment for fraud
Section-448 Punishment for false statement
Section-449 Punishment for false evidence
Section-450 Punishment where no specific penalty or punishment is provided
Section-451 Punishment in case of repeated default
Section-452 Punishment for wrongful withholding of property
Section-453 Punishment for improper use of “Limited” or “Private Limited”
Section-454 Adjudication of penalties

Section-454A Penalty for repeated default
Section-455 Dormant company
Section-456 Protection of action taken in good faith
Section-457 Non-disclosure of information in certain cases
Section-458 Delegation by Central Government of its powers and functions
Section-459 Powers of Central Government or Tribunal to accord approval, etc., subject to conditions and to prescribe fees on application
Section-460 Condonation of delay in certain cases
Section-461 Annual report by Central Government
Section-462 Power to exempt class or classes of companies from provisions of this Act
Section-463 Power of court to grant relief in certain cases
Section-464 Prohibition of association or partnership of persons exceeding certain number
Section-465 Repeal of certain enactments and savings
Section-466 Dissolution of Company Law Board and consequential provisions
Section-467 Power of Central Government to amend Schedules
Section-468 Powers of Central Government to make rules relating to winding up
Section-469 Power of Central Government to make rules
Section-470 Power to remove difficulties

Access complete Bare Act [here](#). To research Section and sub-section wise judgments, [visit here](#).

[Join WhatsApp Channel](#)

[Subscribe now](#)

[Join WhatsApp Channel](#)

[Subscribe Now](#)

[Corporate Plan](#)

[Dashboard/OnePage](#)

[Case Laws Portal](#)

[Bare Acts/Legal Contents](#)

[IBC Commentary](#)

[Arbitration Portal](#)

[Case Citation](#)

[Weekly Bulletins](#)

[Articles](#)

[e-Journals](#)

[Annual Case Digest](#)

[Testimonials](#)

Follow for daily updates:

-  [Facebook](#)
-  [LinkedIn](#)
-  [Telegram](#)
-  [X](#)
-  [WhatsApp](#)
-  [YouTube](#)

[Download Mobile App](#)

[Subscribe Daily Email Newsletter](#)

